



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC Devin Story #565 and TFC Austin Weaver #556

Work Assignment: Troop/Division - A; Post/Unit – 43 - Calhoun and Post 3 - Cartersville

INCIDENT REPORT # DPS00158934

Related Crash Reports: _____ ; _____ ; _____

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: No

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 4/5/2024

Time: 0850 hours

Location: Post 43 - Calhoun

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, SGT Steve Langham #192, TFC Devin Story #565 and TFC Austin Weaver #556

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 3/30/2024

Time: 1757 hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On 3/30/2024 at approximately 1757 hours, TFC Story was operating speed detection on I-75 South at GA 225 when she observed a red motorcycle traveling south at a high rate of speed. TFC Story confirmed the motorcycle's speed with LIDAR at 92 miles per hour in a posted 70 mile per hour speed zone. When TFC Story attempted to stop the motorcycle, the violator refused to stop and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A

If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A

If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A

If Yes, explain: TFC Story contacted the Troop A Communications Center by radio and informed them that she was in a pursuit. TFC Story provided her location, direction of travel and a description of the vehicle. Dispatcher Coffman received this information and created a CAD call for the pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes

☐ No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A

Explain: Once the pursuit initiated, Dispatcher Coffman cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A Troopers.

Dispatcher Carden contacted the Gordon County 911 Center while Senior Dispatcher A. Jennings contacted the Bartow County 911 Center. The dispatchers advised both counties of the pursuit and requested their assistance.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on I-75 South just south of GA 225 at mile marker 317 and continued southbound for approximately 28.5 miles (entering Bartow County). The pursuit terminated on I-75 South just north of GA 113 near mile marker 288.5 when the violator came to a stop and gave up. The pursuit lasted approximately 14 minutes and 33 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☐ N/A If Yes, explain: After traveling into Bartow County (Post 3 - Cartersville's territory), TFC Story remained in the primary position. When TFC Weaver joined in the pursuit near mile marker 292, he took the secondary position and call the pursuit so that TFC Story could concentrate on her driving skills.

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A If Yes, explain: The violator's actions during the pursuit support a charge of Felony Fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A

If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☒ N/A

Explain:

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: TFC Story and TFC Weaver utilized all their emergency equipment throughout the pursuit. They operated their patrol vehicles in a responsible manner and didn't take any unnecessary risks while taking the violator into custody.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daytime hours with clear skies and a dry road surface. The traffic conditions on I-75 at the time of the pursuit would be considered moderate.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☒ N/A

If Yes, explain:

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☒ N/A

If Yes, explain:

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A

If Yes, explain: During the pursuit, the violator fled at high speeds, improperly changed lanes by cutting in and out of traffic. The high speed reckless driving of the violator posed a great risk to the public while clearly demonstrating no regard for the safety of others and all involved.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A

If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☒ N/A If Yes, explain:

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☒ N/A If Yes, explain:

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: This was TFC Story's 5th pursuit as a Georgia State Trooper. TFC Weaver has been involved in numerous pursuits during his career as a State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: TFC Story and TFC Weaver have received E.V.O.C. and Advanced E.V.O.C. Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A If Yes, explain: TFC Story and TFC Weaver exercised due caution throughout the pursuit and demonstrated good judgement/decision making skills. Both Troopers operated their patrol vehicles in a responsible manner while commentating and communicating the violator's actions during the pursuit.

2. Areas for improvement.

☒ N/A If Yes, explain:

3. Other considerations.

☒ N/A If Yes, explain:

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒ N/A If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☒ N/A

If Yes, explain:

Lt. T. L. Nichols #36 Lt. T. L. Nichols #36
Reviewing Officer

4/23/2024
Date